

with her privacy and that of her invitees. Since the Court ruled that plaintiffs are not permitted to retain photographs of lawful use of the easements, defendant prevailed to that extent.

Moreover, plaintiffs brought seven additional causes of action. After trial, they dismissed all seven claims. As to those, defendant is the prevailing party.

In these situations,

“the trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources.” (*On-Line Power, Inc. v. Mazur* (2007) 149 Cal.App.4th 1079, 1087 [57 Cal. Rptr. 3d 698].) Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives (*Wohlgemuth v. Caterpillar Inc.* (2012) 207 Cal.App.4th 1252, 1264 [144 Cal. Rptr. 3d 545]) and the action yielded the primary relief sought in the case (*City of Santa Maria v. Adam* (2016) 248 Cal.App.4th 504, 516 [203 Cal. Rptr. 3d 758]).” *Friends of Spring Street v. Nevada City* (2019) 33 Cal.App.5th 1092, 1104.

Here, it is clear, at a practical level, that defendant obtained almost all the relief she sought. She realized virtually all her litigation objections. As a practical matter, there were only very limited litigation objectives as to which she failed to obtain complete relief, viz., she did not obtain all the declaratory relief she sought regarding the cost of the fencing (although she obtained most of what she sought); she did not obtain the declaratory relief she sought with regard to the fencing along the driveway at Parcel D-1; and she did not obtain all of the relief she sought with respect to the security cameras (although she preserved her privacy). Thus, viewing the case in its entirety, the Court considers defendant to be the prevailing party, as a practical matter.

The Court has considered whether costs might be apportioned to account for the very limited success plaintiffs had in the litigation. But nothing in the papers submitted for this hearing begin to enable the Court to determine what, if any, of plaintiffs' costs relate to the litigation of those limited issues. Although there is considerable detail attached to plaintiffs' bill of costs, it is not broken down in a way that apportions costs to the very few issues on which they prevailed. Given that, the Court denies plaintiffs' motion to tax costs (with one exception) and grants defendant's motion to tax costs.

That exception regards court reporter costs. Plaintiffs assert there was an agreement to share equally the cost of the court reporter at trial. Defendant agrees, but Mr. Tener's declaration says it was his “understanding” that the costs would be subject to reallocation following trial. Neither party has submitted a written agreement regarding this matter. Unless there was an express oral agreement that agreed-upon shared costs would be subject to reallocation, then the Court will enforce the parties' agreement to share court reporter trial costs.

Thus, the Court denies plaintiff's motion to tax costs with one exception. It grants plaintiffs' motion to tax defendant's costs in the amount of half the cost of the court reporter's services during trial. However, there is a question as to how much that really is.

According to the "Memorandum in Support of Mary Anne Garamendi's Motion to Tax Costs" filed June 14, 2024, the cost of the trial transcripts sought by plaintiffs is \$9,817.77. However, defendant's bill of costs, filed May 28, 2024 seeks only \$9,722.17, in total, for court reporter fees. It is not clear whether the \$9,722.17 is solely for trial transcripts or for other reporting services as well. (The Court notes that plaintiffs' bill of costs seeks \$13,082.45 in total court reporter fees. That includes fees for reporting other hearings in addition to the trial.) But in any event, defendant's \$9,722.17 figure is less than plaintiff's \$9,817.77.

Given the uncertainty regarding the cost of the court reporter's services during trial, the Court requests that the parties confer in advance of the hearing of this matter and seek to agree upon what that cost was.

As noted above, defendant's motion to tax costs is granted in its entirety.